



Dataedo License (current)

This license applies to software version 26.1 and later

Other versions: [Dataedo 24.2](#)



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Details

About

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We use cookies to personalise content and ads, to provide social media features and to analyse our traffic. We also share information about your use of our site with our social media, advertising and analytics partners who may combine it with other information that you've provided to them or that they've collected from your use of their services.

Customize >

Allow all

7. Support

8. Fees and Payment

9. Usage Data and Data Protection

10. Warranties and Liability

11. Final Provisions

Gdansk (address: Al.
Grunwaldzka 472,
80-309 Gdansk,
Poland; registration:
District Court
Gdansk-Polnoc in
Gdansk, under KRS
no.: 491619; EU
VAT/TIN:
PL5833163875; share
capital: PLN
20,800.00), and



free Trialware under this Agreement; or (ii) any entity (such as a company or other legal person) whose details appear in an executed Order Form and that purchases a paid License under



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including use of Trialware beyond the permitted evaluation terms or use of non-Trialware Products without a valid Order Form - constitutes unlicensed use.

3) Definition of Order Form. **"Order Form"** means the order document issued by Dataedo and



sets forth the commercial, licensing, and subscription details applicable to the Products purchased by Customer.

2. Purpose and Scope

1) Purpose of the



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related materials that Dataedo makes available to Customer under this Agreement.

3) Product Identification and Documentation. The Products available to Customer are identified in the applicable Order Form and described in the product documentation



published on Dataedo's website (<https://dataedo.com>) as of the date the Order Form is concluded, as updated by Dataedo from time to time. Such resources are accessible to Customer through Dataedo's website



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descriptive only and reflects the Products as of the date the Order Form is concluded. Any feature list made available on Dataedo's website (specifically at <https://dataedo.com/pricing#all-features>) is provided for informational purposes only and does not form part of this Agreement.



and patch releases) made available during the Subscription Period. Dataedo maintains a product roadmap (specifically at <https://roadmap.dataedo.com/tabs/2-planned>) as a planning and informational resource



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Products under the License, identified in the manner specified in the applicable Order Form or in the product documentation published on Dataedo's website (including, for example, by email address or account assignment). The roles, permissions, and access levels applicable to each



documentation.

2) Customer Responsibilities. Customer will assign each Named User to the appropriate role and will ensure that Named Users access the Products only within the permissions associated



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the Order Form and further described in the product documentation and pricing resources published on Dataedo's website.

2) Custom Plans. Dataedo may, at its discretion, offer Customer a custom plan that differs from standard Plans. Any such custom plan will be



Agreement unless the Parties expressly agree otherwise in writing.

3) Offline License Option. In certain cases, Dataedo may make available an offline licensing option (the "Offline License")



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Supplement in the event of non-compliance, including measures to address improper distribution, sharing, or excess utilization.

4) Legacy Plans. Certain Customer subscriptions may fall under plans that are no longer offered for new purchases ("Legacy



Dataedo and available solely for renewal by existing Customers, as described in the product documentation published on Dataedo's website. Legacy Plans remain subject to the terms and conditions applicable at



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a limited, non-exclusive, non-transferable, and non-sublicensable worldwide license (the "**License**") to download, install, run, and make necessary copies of the Products solely for Customer's internal business purposes.

3) Restrictions on Use.
Except to the extent such



to: (i) translate, modify, or create derivative works of the Products; (ii) integrate or embed the Products as a component of any other software or service that is offered, sold, or otherwise made available to any third party; (iii) make the



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Products in compliance with applicable law and must not use them in a manner that infringes or misappropriates any third party's rights.

4) Named User Limits and Plan Upgrades. The License is limited to the number and types of Named Users purchased by Customer, as specified



frequently than once every thirty (30) days. Customer may increase the number of Named Users or upgrade its Plan at any time during the Subscription Period. Fees for such increases or upgrades will be prorated



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and must keep the designation current. Dataedo may rely on the most recently designated License Owner and communications directed to the License Owner are deemed communicated to Customer. Customer may select any Activation Date that occurs no later than sixty (60) days after



including full access to the Products, on the Activation Date. If Customer does not specify an Activation Date, activation will occur automatically on the sixtieth (60th) day following execution of the Order Form. Activation



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exports, or other materials generated from the Products during the Subscription Period, and (ii) retain the contents of the Products' repository database deployed in Customer's environment and access such contents solely in read-only form (e.g., by connecting



7) Termination and Cessation. Dataedo may terminate this Agreement for cause upon thirty (30) days' written notice if Customer materially breaches this Agreement, including by permitting access beyond the permitted number of



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features may generate read-only materials that can be accessed without using the Product. Dataedo permits Customer to share such materials with individuals other than Named Users, at no additional charge and without time limitation.



1) Free Trials. Dataedo may provide Customer with time-limited, free access to the Products for evaluation purposes ("Trial"). A Trial is intended solely to allow Customer to evaluate the Products before deciding



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elect to, purchase a full License.

3) Permitted Evaluation Use Only. Trials and POCs provide Customer with access to the Products solely for evaluation and decision-making purposes; however, Trials may have limited functionality or feature



available under Dataedo's standard licensing options. They may not be used for any commercial, operational, or revenue-generating activities. Trials and POCs are not available to existing customers seeking to renew a License



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5) Trialware Provided "As Is". Products made available under a Trial or a POC (collectively, the **"Trialware"**) are provided "as is" and "as available." To the maximum extent permitted by law, Dataedo disclaims all warranties - express, implied, statutory, or otherwise - and all obligations and liability



6) Applicability of License Terms to POC. Except as expressly stated in this Agreement, including this Clause 6 (Trialware: Trials and Proof of Concept), and in the applicable Order Form, a POC is subject to the same



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2) Maintenance and Updates. During the Subscription Period, Dataedo releases new versions of the Products from time to time and makes the released and supported versions available to Customer for electronic delivery (including via Dataedo's website). For purposes of



major release of the Products and any other versions that Dataedo expressly designates in writing as supported. Customer is responsible for installing supported versions (including updates, upgrades, and



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Responsibilities. Customer is solely responsible for creating, securing, and maintaining the environment and components necessary to operate the Products. Dataedo does not host Customer's environment.

8. Fees and Payment



Unless expressly stated otherwise in the Order Form, all fees are non-cancellable and non-refundable. Pricing resources and documentation published on Dataedo's website are provided for informational



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accepted by Dataedo, including ACH transfer, credit card, or wire transfer, as specified in the Order Form or on the invoice. Customer is responsible for any transaction charges imposed by its payment provider.



Agreement must be paid in full and without any deduction or set-off. If Customer is required by applicable law to deduct or withhold taxes from any payment, Customer will pay such additional amounts as are necessary



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9. Usage Data and Data Protection

1) Usage Data Collected by Dataedo. Dataedo may collect limited technical and usage information generated when Customer or its Named Users interact with the Products, including event



information, repository or data source type and version, identifiers such as a user ID, account ID, and public IP address. Customer may block transmission of such usage data by using similar technologies that block



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Data. Dataedo processes usage data for legitimate purposes, including improving and securing the Products, providing support, assisting Customer with onboarding, detecting unlawful or fraudulent use, notifying Customer of updates and new versions, and evidencing service



4) Data Protection and Roles of the Parties. Each Party processes personal data relating to the other Party's employees, representatives, or contact persons as an independent controller for the purposes of entering into



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retention periods, and rights of data subjects is set out in Dataedo's Privacy Policy, available at <https://dataedo.com/privacy>, which is incorporated by reference for informational purposes.

10. Warranties and Liability



Period, the Products will substantially conform to the specifications described in the applicable product documentation: (i) for the version of the Products activated by Customer, as published on Dataedo's website as of



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or trade secret rights. To Dataedo's knowledge as of the date of the applicable Order Form and without undertaking any independent investigation, the Products do not infringe any third party's patent or trademark rights.



Warranty or IP Warranty, Customer's sole and exclusive remedy, and Dataedo's entire liability, will be for Dataedo, at its option, to: (i) repair the nonconforming portion of the Products; (ii) replace the Products with



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MAXIMUM EXTENT PERMITTED BY LAW, DATAEDO DISCLAIMS ALL OTHER WARRANTIES AND CONDITIONS—WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE—including IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE,



ANY WARRANTIES
ARISING FROM COURSE
OF DEALING, USAGE, OR
TRADE PRACTICE.

5) Limitation of Liability.
TO THE MAXIMUM
EXTENT PERMITTED BY
LAW, DATAEDO'S TOTAL
AGGREGATE LIABILITY



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EXEMPLARY, PUNITIVE,
OR CONSEQUENTIAL
DAMAGES, OR FOR ANY
LOSS OF PROFITS,
REVENUE, BUSINESS,
GOODWILL, DATA,
BUSINESS
INTERRUPTION, OR
COSTS OF SUBSTITUTE
GOODS OR SERVICES,
EVEN IF DATAEDO HAS
BEEN ADVISED OF THE



OTHERWISE
FORESEEABLE. THESE
LIMITATIONS AND
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REGARDLESS OF THE
THEORY OF LIABILITY
AND EVEN IF ANY
REMEDY FAILS OF ITS
ESSENTIAL PURPOSE.



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beyond the performing
party's reasonable control.

11. Final Provisions

1) Governing Law and
Venue. This Agreement is
governed by the laws of
the Republic of Poland,
excluding its conflict-of-
law rules. Any disputes
arising out of or relating to



jurisdiction over the registered office of Dataedo. Each Party irrevocably consents to such jurisdiction and venue.

2) Assignment; No Third-Party Beneficiaries. Customer may not assign



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respective permitted successors and assigns.

3) Entire Agreement; Order of Precedence. This Agreement, together with any executed Order Form, constitutes the entire agreement between the Parties regarding the subject matter hereof and supersedes all prior or



communications, whether written or oral. In the event of any conflict between this Agreement and an Order Form, the Order Form controls only to the extent it expressly states that it overrides this Agreement. Any terms



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5) Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions will remain in full force and effect, and the invalid provision will be interpreted to achieve, to the greatest extent possible, the original intent of the Parties.



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writing" includes any communication transmitted in a form that creates a durable and retrievable record, including email and other electronic communications, regardless of whether such communication



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